



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White, Planner II
Subject: PUDC-24-223 / Holliday Park / Final Plat
Date: January 13, 2025

Background:

The item for consideration is a *Final Plat*. This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral January 13, 2025
- Public Services Committee January 21, 2025
- Final consideration January 27, 2025

Planning Commission Recommendation:

The Planning Commission heard this item at their January 6, 2025 meeting and voted to recommend the Governing Body approve this application.

The applicant had made correction to the plat and Planning Commission did not place any conditions on the approval. The updated map is provided after the resolution.

The Planning Commission Staff report is attached.

Attachments:

1. Resolution
2. Final Map
3. Planning Commission Staff Report

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR HOLLIDAY PARK, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED NORTHEAST OF THE INTERSECTION OF EAST LINCOLNWAY AND MORRIE AVENUE)."

WHEREAS, Brandon D Swain and the City of Cheyenne has subdivided said land in accordance with the statutes in such cases made and provided;

WHEREAS, Brandon D Swain and the City of Cheyenne the owners of the above-described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots, blocks, easements, and rights-of-way; and

WHEREAS, the above-described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration; the Planning Commission has recommended that said plat be approved by the Governing Body; and the plat has been duly executed by the Development Office.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the subdivision described as Holliday Park, Cheyenne, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat, when Community Facility Fees have been paid in full.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2025.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk



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CITY OF CHEYENNE PLANNING COMMISSION
JANUARY 6, 2024
STAFF REPORT

FILE: PUDC-24-223: Holliday Park (Expedited Review)

REQUEST: Subdivide the southwest corner of the park and add the land to an existing single-family lot.

LOCATION: Northeast of the intersection of Morrie Avenue and E Lincolnway.

APPLICANT: Brandon Swain

OWNER: City of Cheyenne and Brandon Swain

ZONING: P-Public and MUB-Mixed-use Business with the UU-Urban Use Overlay

PURPOSE: A plat creating two lots to allow redevelopment of the southwest corner of the park.

PREPARED BY: Connor White, Planner II



RECOMMENDED MOTION:

Move to **approve** the Holliday Park Preliminary Plat, advancing the Final Plat to the Governing Body with staff recommended conditions.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.1.2 Preliminary Plat Approval
- UDC 2.1.3 Final Plat Approval
- UDC Article 4 Subdivisions
- UDC Article 5 Zoning Regulations
- PlanCheyenne

BACKGROUND:

The applicant is requesting approval of a preliminary plat for roughly 40 acres of land. The subject property is Holliday Park and a single-family lot in the southwest corner. The proposed plat would subdivide the park, removing the parking lot at the southwest corner and add it to the existing single-family lot for redevelopment. This plat will also vacate many existing rights-of-way and lot lines that are still within the park. There is currently a contract with the applicant to buy the parking lot portion for redevelopment and as part of the contract the applicant must plat Holliday Park. The plat includes an access easement for the non-park parcel through the park.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Open Space and Parks / Mixed-use Commercial	P-Public and MUB-Mixed-use Business with the UU-Urban Use Overlay	City Park /Single-family Residence
North	Urban Residential	MR-Medium-density Residential	Single-family
South	Mixed-use Commercial / Industrial	CB-Community Business and LI-Light Industrial	Commercial
East	Urban Residential / Mixed-use Commercial	HR-High-density Residential, MUB-Mixed-use Business, and CB-Community Business	Single-family / Multi-family / YMCA
West	Urban Residential / Community Business	MR-Medium-density Residential, and CB-Community Business	Single-family / Multi-family / Commercial

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Preliminary Plat, the Commission must make the following findings required in UDC 2.1.2.d – a detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.1.2.d.1)

On the future land use map found in PlanCheyenne, the subject land is designated as Open Space and Parks for Lot 2 and Mixed-use Commercial for Lot 1. Lot 2 is already developed with a park which is expected of its designation. Lot 1 is proposed to be developed with a mixed-use building, which also follows the future land use designation.

Foundation 1 of PlanCheyenne encourages community growth. This development is in response to market demands and is within the Urban Service Boundary. The development patterns proposed by this plat are compatible with the designations found on the future land use map.

Foundation 7 of PlanCheyenne supports the use of existing infrastructure and timely provision of services (including emergency and education services). This development is proposed in an area which has largely existing infrastructure and limited expansion of infrastructure is necessary.

The application **complies** with this review criterion.

2) The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities. (UDC 2.1.2.d.2)

The proposed plat is in an area with existing infrastructure and no changes to the street or utility network are proposed. The proposed plat would not change the existing conditions in a way which would adversely affect the ability of surrounding properties to redevelop.

The application **complies** with this review criterion.

3) The division of land meets the purposes, intent, and all applicable standards in Article 4. (UDC 2.1.2.d.3)

Community Facility Fees (4.2):

For fees based on acreage, the area of the plat is pro-rated to the nearest tenth of an acre. Lands reserved as unbuildable (for right-of-way, detention, parks, remainder lots, etc), are exempt from fees.

Land Acquisition Fee	\$280
Infrastructure Fee	\$280
Total Land Acquisition & Infrastructure Fees	\$560

Per UDC Section 4.2.5, Table 4-2, the Land Acquisition & Infrastructure fee are payable at the time of the signing of the final plat.

Per UDC Section 4.2.5, Table 4-2, Enhancement Fees are payable at the issuance of a building permit for each structure.

Residential Enhancement Fee \$400 per dwelling unit

Transportation Network (4.3):

This plat is occurring within an area of the community which has been previously developed. There is limited opportunity to modify the block layout or street network. Parks are anticipated to be on larger-than-standard blocks.

Open Space (4.4):

Lot 2 of this plat is an existing park.

Required Improvements (4.5):

This plat appears to be able to provide all required utilities to the lots within this development.

Public Safety Fees (4.6):

Public Safety Fees are required at the time of construction of any residential building on any of the proposed lots. Per UDC Section 4.6.3.b, Public Safety Fees are payable at the issuance of a building permit for each structure.

The application **complies** with this review criterion.

- 4) Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned. (UDC 2.1.2.d.4)**

No specific phasing is proposed with this project.

Review criterion **not applicable**.

- 5) The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts. (UDC 2.1.2.d.5)**

Drainage:

A drainage worksheet was submitted and reviewed. There were no concerns with drainage at the plat level for the project as presented.

Traffic:

A transportation worksheet was submitted and reviewed. There were no concerns with traffic at the plat level for the project as presented.

The application **complies** with this review criterion.

- 6) Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements. (UDC 2.1.2.d.6)**

All lots proposed for development are buildable lots in these zone districts.

The application **complies** with this review criterion.

- 7) **All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance. (UDC 2.1.2.d.7)**

All proposed lots are proposed as buildable lots (parks are considered 'buildable' for parks and recreation purposes). The Plat does not propose any lots subject to this criterion.

Review criterion **not applicable**.

- 8) **The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property. (UDC 2.1.2.d.8)**

This plat will not create any undue influence on existing or potential development.

The application **complies** with this review criterion.

- 9) **The application is not harmful to the public health, safety, and welfare. (UDC 2.1.2.d.9)**

City staff is satisfied that this proposed plat would not adversely affect the public health, safety, or general welfare.

The application **complies** with this review criterion.

- 10) **Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description. (UDC 2.1.2.d.10)**

Remainder lots are not proposed with this plat.

The application **complies** with this review criterion.

- 11) **The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan. (UDC 2.1.3.d.1)**

The Final Plat submitted with the application is substantially similar to the Preliminary Plat submitted.

The application **complies** with this review criterion.

- 12) **The application meets any conditions or modifications of the approved preliminary plat. (UDC 2.1.3.d.2)**

Through staffs review BOPU requested that their standard note and language for their easements be added to the plat.

The application **complies** with this review criterion, with conditions.

13) The application meets the purposes, intent, and applicable standards of Article 4. (UDC 2.1.3.d.3)

As a concurrent Preliminary and Final Plat application, this Final Plat review criterion is covered by the equivalent Preliminary Plat review criterion (subsection 3 above).

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, comments were received regarding the following issues:

1. Technical correction
2. Easements for utilities and BOPU.

CONCLUSION:

Staff analysis is that the application meets the review criteria and therefore recommends approval of the expedited plat application with conditions.

ALTERNATIVES:

1. Recommend approval of the expedited preliminary plat, forwarding the Final Plat to the Governing Body.
2. Recommend approval of the preliminary plat with conditions and that a final plat addressing the conditions of approval be prepared and presented to the Governing Body.
3. Recommend approval of the preliminary plat as submitted by the applicant and forward the preliminary plat to the Governing Body.
4. Recommend approval of the preliminary plat subject to staff's recommended conditions and forward the preliminary plat to the Governing Body.
5. Recommend denial of the preliminary plat based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
6. Postpone the project until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

The Planning Commission may modify staff's recommended conditions, delete conditions, add conditions, or decide contrary to staff's recommendation. In the event conditions are modified, the conditions shall relate to applicable review criteria. In the event that the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

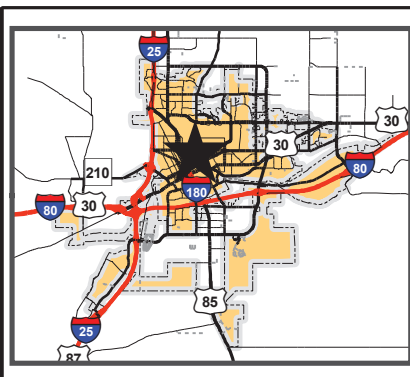
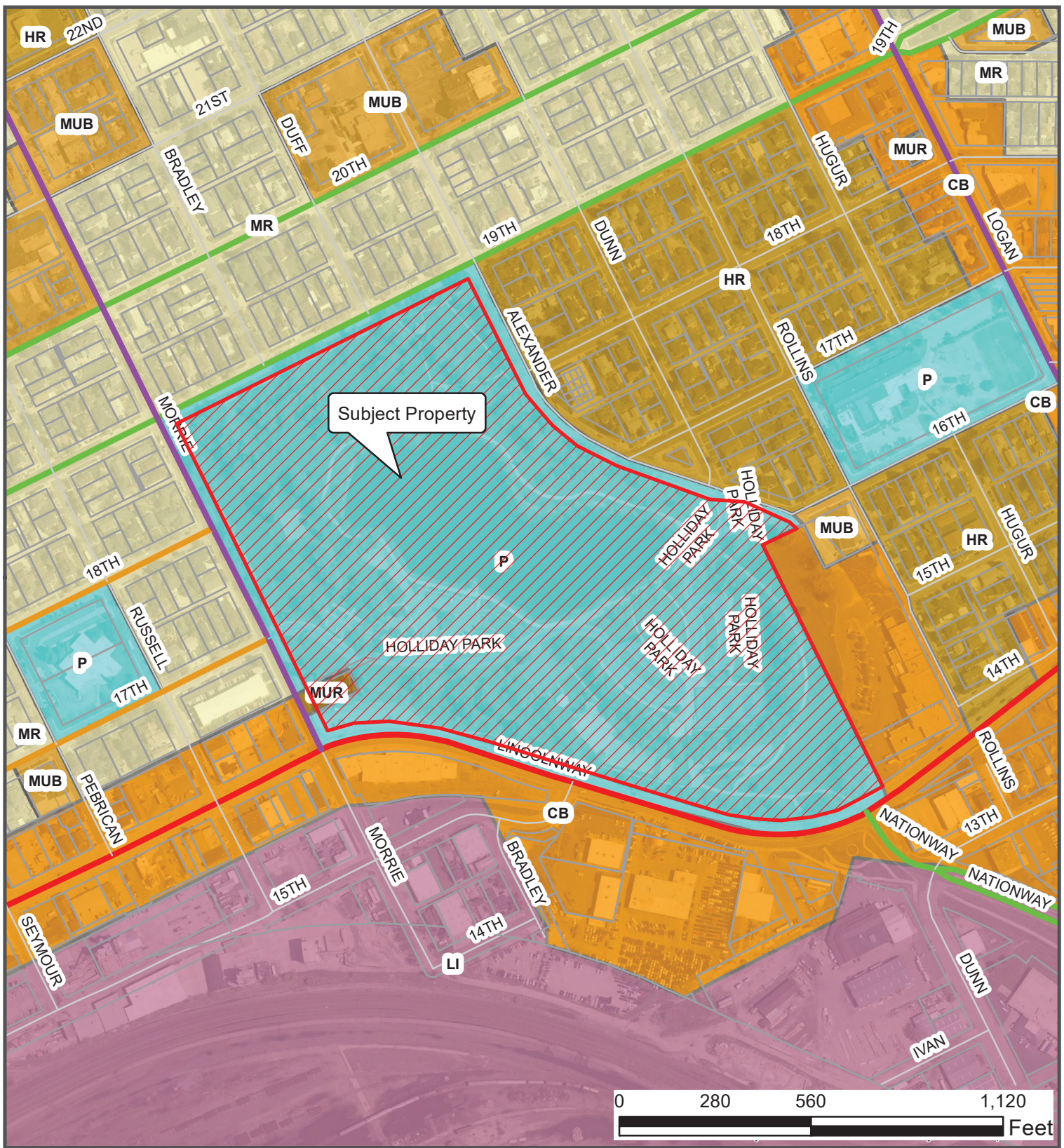
STAFF RECOMMENDATION:

Staff recommends approval of the expedited Preliminary Plat, advancing the Final Plat to the Governing Body with the following conditions:

1. Add BOPU standard note and language to the plat for their easements prior to recording of the plat.

ATTACHMENTS:

1. Zoning Map
2. Land Use Plan Map
3. Master Application Form
4. Preliminary Plat
5. Final Plat

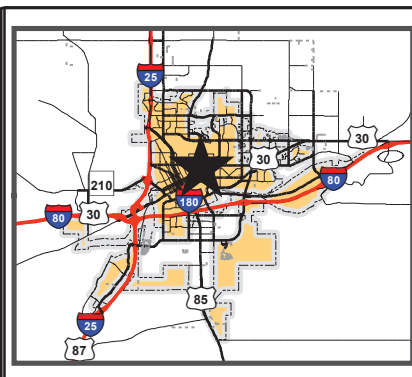


Attachment 1: Zoning Map PUDC-24-223

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map PUDC-24-223

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Legend

City Limits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		



PUDC-24-223

Plat - Expedited

Status: Active

Submitted On: 11/13/2024

Primary Location

1611 MORRIE AVE

Cheyenne, WY 82001

Owner

SWAIN, BRANDON D

1611 MORRIE AVE CHEYENNE,

WY 82001

Applicant

 Brandon Swain

 307-214-9634

 bswainy23@gmail.com

 2856 Deming Blvd

Cheyenne, WY 82001

Application Information

This application has a deadline. The deadline is the second Wednesday of the month. Application Schedule.

An expedited review is when both a preliminary and final plat are submitted to the Planning Commission together. To be eligible for expedited review the preliminary plat shall contain no significant planning, design, and engineering issues. Upon determination by staff, the applicant may submit a preliminary and final plat to the Planning Commission.*



I acknowledge the that Expedited status is not guaranteed.*



Written Statement*

This plat is required as part of the sales contract between myself and the city. The plat should formally establish the Holliday park boundary, Holliday Park Plaza boundary, and all necessary BOPU and ROW easements/vacations. Steil is working on the ROW and easements.

Project Name*

Holliday Park Plaza

Plat Title*

Holliday Park Plaza

Current Subdivision* ?

Original City

Project area (acres)*

40.4

Proposed Lots* ?

2

Pre-application Meeting Date

—

Park Fees are due at time of signing of the final plat mylar (see UDC 4.2.5). I acknowledge that this plat may be required to pay plat-level Park Fees.*



Public Improvements are required with platting actions. Please select the option that best demonstrates your intent for the public streets and other infrastructure adjacent to or within the plat boundary.* ?

Owner(s) (or developers) behind the plat application will construct the needed infrastructure.

Review Criteria

The following review criteria are found in the UDC regarding a Preliminary Plat. Please acknowledge the proposed plat meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.1.2.d.1).*



The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities (2.1.2.d.2).*



The division of land meets the purposes, intent, and all applicable standards in Article 4 (2.1.2.d.3).*



Any phasing proposed in the application is clearly indicated and demonstrates a logical and wellplanned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned (2.1.2.d.4).*



The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts (2.1.2.d.5).*



Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in site design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements (2.1.2.d.6).*



All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance (2.1.2.d.7).*



The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property (2.1.2.d.8).*



The application is not harmful to the public health, safety, and welfare (2.1.2.d.9).*



Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description (2.1.2.d.10).*



The following review criteria are found in the UDC regarding a Final Plat. Please acknowledge the proposed plat meets each review criterion by checking the box.

The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan (2.1.3.d.1).*



The application meets any conditions or modifications of the approved preliminary plat (2.1.3.d.2). (Not applicable at time of application for an expedited plat)

The application meets the purposes, intent, and applicable standards of Article 4 (2.1.3.d.3).*



Certification

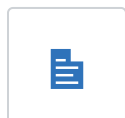
I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*



Brandon Swain

Nov 13, 2024

Attachments



Letter of Authorization

1611 Morrie LOA.pdf

Uploaded by Brandon Swain on Nov 13, 2024 at 6:42 PM

REQUIRED

	Preliminary Plat Map 22266A - PLAT-FINAL.pdf Uploaded by Brandon Swain on Nov 13, 2024 at 7:10 PM	REQUIRED
	Final Plat Map 22266A - PLAT-FINAL 12-27-24.pdf Uploaded by Connor White on Dec 30, 2024 at 9:49 AM  3 Versions	REQUIRED
	Open Space Approach Holliday open space.pdf Uploaded by Brandon Swain on Nov 13, 2024 at 7:10 PM	REQUIRED
	Drainage Worksheet / Study drainage ws.pdf Uploaded by Brandon Swain on Nov 13, 2024 at 6:43 PM	REQUIRED
	Transportation Worksheet / Study transportation ws.pdf Uploaded by Brandon Swain on Nov 13, 2024 at 7:17 PM	REQUIRED
	Transportation Network Plan Holliday transportation network.pdf Uploaded by Brandon Swain on Nov 13, 2024 at 6:53 PM	REQUIRED
	Comment Letter PUDC-24-223 2nd review CommentLetter.pdf Uploaded by Connor White on Dec 30, 2024 at 9:49 AM  2 Versions	

